

the exercise of his discretion, might think proper, should be applied to a charitable purpose. Under such circumstances the heir of the testator would have a right to interrogate the devisee whether he has exercised that discretion, and to call for a conveyance of so much as the devisee may have made subject to the unlawful purpose (*a*).

15. Defendant must discover what the secret trust was. — In the above cases it is not a sufficient answer to an action by the heir for the defendant to say that the secret trust is *not for the plaintiff*, for thus the devisee makes himself the judge of the title. The trust may be for a charity, and if so, the beneficial interest would result for want of a lawful intention, or the equitable interest might, on some other ground, enure to the heir as undisposed of (*b*). If the defendant deny the trust by his answer, the fact in this, as in other cases of fraud, may be established against him by parol evidence (*c*).

16. Engagement to execute a trust and no trust declared. — It is clear that if the devisee enters into an engagement with the testator to execute an unlawful trust, the heir may bring an action, and claim the beneficial interest; but suppose the devise is a beneficial one upon the face of it, and the testator communicates his will to the devisee, and requests him to be a trustee for such purposes as the testator shall declare, which the devisee undertakes to do, but the testator afterwards *dies without having expressed any trust*, it seems that in this case also the devisee will not be allowed to take the beneficial interest, but the heir-at-law will be entitled (*d*).

17. Case of devisee made a trustee on face of the will, and parol declaration of trust for a stranger. — Another case, distinct from all the preceding, is where a testator *devises an estate to persons as trustees*, but no trusts are declared by the will, so that the equitable interest would, upon the face of

(*a*) *Muckleston v. Brown*, 6 Ves. 69.

(*b*) *Newton v. Pelham*, cited *Boson v. Statham*, 1 Eden, 514; [*Re Boyes*, 26 Ch. D. 531.]

(*c*) *Kingsman v. Kingsman*, 2 Vern. 599; *Pring v. Pring*, 2 Vern. 99;

[*Riordan v. Banon*, 10 I. R. Eq. 469.]

(*d*) *Muckleston v. Brown*, 6 Ves. 52; [*Re Boyes*, 26 Ch. D. 531.] See also the observations of V. C. (afterwards L. J.) Turner, in *Russell v. Jackson*, 10 Hare, p. 214.